



INDIAN LAW & DEALMAKING · 26 SEPTEMBER 2026

Five moves shaping the board now.

- › NCLT approves Sesa Care merger into Dabur India
- › SEBI introduces PRIM framework and formula-based settlements
- › Supreme Court appoints sole arbitrator in Kinetic Green Saera EV dispute
- › Novus Loyalty acquires majority stake in AutoPe
- › ED probes 105 crore promoter backdoor return in McNally Bharat

SWIPE →



NCLT approves Sesa Care amalgamation into Dabur India

On September 25, 2026, the NCLT New Delhi Bench approved the Scheme of Amalgamation of Sesa Care Private Limited into Dabur India Limited. The approved merger allows Dabur India Limited to integrate the Ayurvedic hair care brand while absorbing 289 crore rupees in debt.

THE READ

Absorbing debt through corporate restructuring enables strategic brand expansion while consolidating operational synergies under NCLT oversight. Corporate acquirers must balance liability integration against long-term brand equity gains.



SEBI approves PRIM framework and formula based settlement rules

On September 25, 2026, the SEBI Board approved the new Portfolio Managers Route for Investing in Mutual Fund framework. The decision permits portfolio management service players to deploy client capital into direct mutual fund plans and standardizes settlement calculations.

THE READ

Direct mutual fund access optimizes portfolio yields by cutting intermediate distribution cost layers for institutional client accounts. Formula-based settlement mechanisms will dramatically increase regulatory predictability and mitigate administrative friction during enforcement actions.



Supreme Court appoints sole arbitrator in EV exclusivity dispute

On September 25, 2026, the Supreme Court appointed retired Justice R.V. Raveendran as sole arbitrator in an EV manufacturing non-compete dispute between Kinetic Green Energy and Saera Electric Auto. The court modified a High Court interim order to specifically restrict vehicle launches strictly defined within contractual annexures.

THE READ

Strict contractual boundary enforcement protects proprietary designs without imposing overbroad commercial restraints on market competitors. Interim relief in complex technology disputes must align precisely with explicit contractual terms rather than broad equitable prohibitions.



Novus Loyalty acquires majority stake in payments firm AutoPe

On September 25, 2026, Novus Loyalty signed definitive agreements to acquire a 54.87 percent majority stake in digital payments company AutoPe Payment Solutions. The transaction is structured as an all-cash deal for an undisclosed sum to facilitate expansion into fintech.

THE READ

Consolidation in digital payment infrastructure reflects aggressive strategic pushes by loyalty software providers toward integrated financial ecosystems. Direct majority control provides Novus Loyalty immediate operational control to scale transaction processing capabilities.



ENFORCEMENT & PMLA · ED

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ED probes promoter backdoor return in McNally Bharat insolvency

On September 25, 2026, the Enforcement Directorate initiated an investigation into an alleged backdoor promoter re-entry in the insolvency resolution of McNally Bharat Engineering. Enforcement authorities traced a 105 crore rupee cash infusion into the distressed entity routed through dummy Vishwa Group entities.

THE READ

Regulatory scrutiny over insolvency resolution integrity is sharply escalating to block prohibited former promoters from re-acquiring distressed assets. Dealmakers and resolution applicants must ensure absolute origin transparency for infused resolution funds to survive regulatory scrutiny.



THE THROUGH-LINE

Indian regulatory and judicial enforcement is rapidly demanding greater structural transparency across corporate transactions, insolvency processes, and asset management frameworks. From SEBI regulatory reforms to ED money laundering probes inside IBC proceedings, authorities are enforcing strict operational boundaries and contractual compliance. Market participants must align aggressive growth strategies with robust governance standards to withstand heightened scrutiny across all commercial forums.





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